

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Starace	Team: Team # 1	CCRB Case #: 201016116	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/23/2010 4:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 5/23/2012	Precinct: 113		
Date/Time CV Reported Tue, 11/23/2010 4:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/23/2010 4:25 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Christopher Owen	03649	924294	NARCBQN
2. DT3 Stephan Munafo	04422	934012	NARCBQN
3. DT3 Andres Libreros	04129	935187	NARCBQN
4. POM Victor Rosario	31001	937436	NARCBQN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Thomas Carter	01170	925036	NARCBQN
2. DT3 Vincent Hoosack	03958	923961	NARCBQN
3. POM Maurice Walston	24763	935950	NARCBQN
4. DT3 Jared Tepperman	01809	937618	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Stephan Munafo	Abuse: Det. Stephan Munafo entered the front yard of § 87(2)(b) in Queens.	A . Exonerated
B . DT3 Stephan Munafo	Abuse: Det. Stephan Munafo stopped § 87(2)(b)	B . Substantiated
C . DT3 Stephan Munafo	Abuse: Det. Stephan Munafo refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . DT3 Andres Libreros	Abuse: Det. Andres Libreros searched the mailbox at § 87(2)(b) in Queens.	D . Unsubstantiated
E . SGT Christopher Owen	Abuse: Sgt. Christopher Owen frisked § 87(2)(b)	E . Substantiated
F . SGT Christopher Owen	Abuse: Sgt. Christopher Owen failed to supervise the frisks of § 87(2)(b)	F . Substantiated
G . DT3 Stephan Munafo	Abuse: Det. Stephan Munafo searched § 87(2)(b)	G . Unsubstantiated
H . POM Victor Rosario	Discourtesy: Det. Victor Rosario spoke rudely to § 87(2)(b)	H . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 23, 2011, § 87(2)(b) called the CCRB to file a complaint.

On November 23, 2011, at approximately 4:00 pm, § 87(2)(b) was standing in front of his mother's house at § 87(2)(b) in Queens, next to his minivan, which was parked at the curb, talking with his cousin, § 87(2)(b) and putting § 87(2)(b)'s luggage into the minivan. Det. Stephan Munafo, Det. Thomas Carter and Det. Vincent Hoosack, all of Queens Narcotics, approached and spoke with § 87(2)(b) and eventually used a point-to-point radio to call for back-up. The following allegations arose from the incident:

Allegation A – Abuse of Authority: Det. Stephan Munafo entered the front yard of § 87(2)(b) in Queens. § 87(2)(g)

Allegation B – Abuse of Authority: Det. Stephan Munafo stopped § 87(2)(b) § 87(2)(g)

Allegation C – Abuse of Authority: Det. Stephan Munafo refused to provide his name to § 87(2)(b)

Allegation G – Abuse of Authority: Det. Stephan Munafo searched § 87(2)(b)

Allegation H – Discourtesy: Det. Victor Rosario spoke rudely to § 87(2)(b) § 87(2)(g)

Allegation D – Abuse of Authority: Det. Andres Libreros searched the mailbox at § 87(2)(b) in Queens. § 87(2)(g)

Allegation E – Abuse of Authority: Sgt. Christopher Owen frisked § 87(2)(b)

Allegation F – Abuse of Authority: Sgt. Christopher Owen failed to supervise the frisks of § 87(2)(b)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

This case was originally assigned to Investigator Xiao Wang, but was reassigned to undersigned, Investigator Alex Starace, on January 4, 2011.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) years old at the time of incident. He is a 5'11" tall, 210 pound black male with black hair and brown eyes.

Interview Statement (9A-C)

On November 30, 2010, § 87(2)(b) gave a telephone statement. He was interviewed in-person at the CCRB on December 29, 2010. The in-person interview is summarized below, with discrepancies between it and the telephone statement noted.

On November 23, 2010, at approximately 4:00 pm, § 87(2)(b) and his cousin, § 87(2)(b) were putting § 87(2)(b)'s bags into § 87(2)(b)'s gold Nissan Quest van in front of § 87(2)(b) Street in Queens. § 87(2)(b) was going to take § 87(2)(b) to the bus station later. They had already put a black duffel bag and a beige duffel bag into the van. § 87(2)(b) was standing on the passenger side of the van, nearest the curb, with the side door opened and talking to § 87(2)(b) who stood to his right. § 87(2)(b) was wearing a black long-sleeved sweatshirt, a black hat, blue jeans, and black boots. He had a wallet in his right back pocket and gloves in his left front pocket.

§ 87(2)(b) saw a dark blue van with tinted windows three houses away, which was driving from 112th Avenue toward 113th Avenue. As the van passed, an officer, identified via investigation as Det. Stephan Munafo of Queens Narcotics, who was a white male, 6'4" to 6'5" tall, and heavy-built, wearing a blue zippered Old Navy shirt, sat in the passenger seat and looked at § 87(2)(b). The police van parked in front of § 87(2)(b)'s van. § 87(2)(b) closed the side door of his van and told § 87(2)(b) to go into the yard of § 87(2)(b). Three officers came out of the van. Det. Munafo approached § 87(2)(b) from behind and grabbed him by his left arm while the other two officers stood outside the front gate of § 87(2)(b). § 87(2)(b) turned and asked what was happening and Det. Munafo told him that he acted suspiciously outside his van. § 87(2)(b) told Det. Munafo that he was putting bags into his van to take his cousin to the bus station.

Det. Munafo grabbed § 87(2)(b)'s right arm, so § 87(2)(b) clenched his right arm inwards and asked Det. Munafo why he touched him. Det. Munafo told § 87(2)(b) to calm down and take his hands out of his pockets. § 87(2)(b) told Det. Munafo that his hands were not in his pockets. § 87(2)(b) started backing into his yard that was five feet away from the van. He happened to have a camcorder in his hand and started recording Det. Munafo. Det. Munafo asked § 87(2)(b) where he was going and § 87(2)(b) told Det. Munafo that he was going into his yard. § 87(2)(b) told Det. Munafo not to touch him and asked for Det. Munafo's name. Det. Munafo grabbed § 87(2)(b) again, but § 87(2)(b) clenched his arm inwards and told Det. Munafo not to touch him.

§ 87(2)(b) was already in the yard, talking to an officer identified via investigation as Det. Vincent Hoosack of Queens Narcotics, who stood outside the gate. Det. Hoosack was described as a white male, 5'6" tall, with blond hair and a full blond beard, who appeared to be 25 years old. He was wearing blue fatigue pants with a blue baseball cap pulled back. An officer identified via investigation as Det. Thomas Carter of Queens Narcotics stood outside the gate by the left pillar. Det. Carter was described as a Hispanic male, 5'6" tall, medium-built, with a mustache, who appeared to be 35 years old. He was wearing a blue Old Navy zipper sweatshirt and a blue Yankee cap. § 87(2)(b) told § 87(2)(b) to stop talking to Det. Hoosack.

Det. Munafo told § 87(2)(b) to calm down and asked § 87(2)(b) three or four times, "Whose car is that?" § 87(2)(b) told Det. Munafo that it was his car. Two to three minutes after Det. Munafo approached § 87(2)(b), § 87(2)(b), § 87(2)(b)'s mother, § 87(2)(b), § 87(2)(b)'s § 87(2)(b)-old nephew, § 87(2)(b), § 87(2)(b)'s § 87(2)(b)-old niece, § 87(2)(b), § 87(2)(b)'s brother, and § 87(2)(b)'s § 87(2)(b)-old nephew came out of the house.

Between three to five minutes after Det. Munafo first approached § 87(2)(b), Sgt. Christopher Owen of Queens Narcotics (whom § 87(2)(b) identified by name) arrived in a black Charger with PO Maurice Walston of Queens Narcotics, who parked the car behind § 87(2)(b).

§ 87(2)(b)'s van. Det. Walston was a black male, 5'11" tall, muscular, and appeared to be in his late 30s. He was wearing a long-sleeve white sweatshirt with a blue vest over it.

Sgt. Owen asked § 87(2)(b) what was going on and if the van belonged to § 87(2)(b). § 87(2)(b) asked Sgt. Owen for his name and Sgt. Owen held up his shield to § 87(2)(b) and provided his name. Sgt. Owen was a white male, 5'6" to 5'8" tall, skinny, with black and gray hair and appeared to be in his 50s. Sgt. Owen was wearing a light gray Old Navy sweatshirt and blue jeans. § 87(2)(b) told Sgt. Owen that it was his car.

§ 87(2)(b) observed an officer, identified via investigation as Det. Andres Libreros of Queens Narcotics, open his mailbox outside the yard and push the items to the side. Det. Libreros was described as a white male, 4'8" tall, muscular, who appeared to be 25 years old. He was wearing a black hoodie and a stocking cap. He was the driver of the black van that was parked in front of § 87(2)(b)'s van. § 87(2)(b) asked, "What are you doing in my mailbox?"

Det. Munafo grabbed § 87(2)(b)'s right arm while Det. Carter grabbed his left arm. Det. Munafo and Det. Carter spread out § 87(2)(b)'s arms and Sgt. Owen frisked him in his groin area. Sgt. Owen asked § 87(2)(b) if he had any weapons and § 87(2)(b) replied no. Det. Munafo and Det. Carter patted § 87(2)(b) on his chest and legs for five to six seconds. Either Det. Munafo or Det. Carter reached into § 87(2)(b)'s back right pocket where his wallet was located. (During his telephone conversation with the CCRB, § 87(2)(b) claimed that Det. Munafo reached into his right front pocket, while Det. Carter reached into his back pocket, and Sgt. Owen reached into his front left pocket.)

§ 87(2)(b) gave his camcorder to § 87(2)(b) his brother. Sgt. Owen asked § 87(2)(b) for his registration, but § 87(2)(b) refused because he was not driving and did not violate any traffic law. He told Sgt. Owen that he could provide his I.D. and his insurance. Sgt. Owen, Det. Munafo and Det. Carter ushered § 87(2)(b) from the yard back to his van. § 87(2)(b) refused to open his van. § 87(2)(b) pulled out his wallet and showed Sgt. Owen his insurance card. PO Walston came behind § 87(2)(b) and said something to Sgt. Owen. Sgt. Owen tapped § 87(2)(b) on his left arm and said, "Have a nice day! We will see you later."

Det. Libreros told § 87(2)(b) "You got a big mouth. We will see you. We will be back." Another officer, who left in the black van as the passenger, identified via investigation as PO Victor Rosario, told § 87(2)(b) "Keep being a smartass, [it] is going to get you locked up."

Witness: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b)'s brother. He was present for the incident and, as discussed in the video summary, he holds the camera for a portion of the incident.

Telephone Statement

§ 87(2)(b) was interviewed via telephone on January 11, 2011 (encl. 12A-B). His statement, though less detailed, did not significantly differ from that provided by § 87(2)(b) other than that he claimed to have been present when the officers arrived, while § 87(2)(b) claimed § 87(2)(b) came into the yard after the officers arrived. § 87(2)(b) did not want further involvement with the investigation and refused to provide his address.

Witness: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b)'s mother. She was inside the house when the incident began, but came outside during the incident.

Telephone Statement

§ 87(2)(b) was interviewed via telephone on January 11, 2011 (encl. 13A-B). Her statement was not significantly different from that provided by § 87(2)(b) § 87(2)(g) § 87(2)(b).

Video Summary (encl. 10A-B; see also video itself)

Below is a summary of the video footage taken by § 87(2)(b) with pertinent comments made by § 87(2)(b) during the screening on December 29, 2010, noted.

The video opens with § 87(2)(b) holding the camera and saying, "Yo, you see this dude, he's grabbing me," and pans to a white male in an Old Navy sweatshirt. The white male, identified via investigation as Det. Munafo, says that he is a police officer. § 87(2)(b) tells Det. Munafo to get out of his yard, and requests for someone to "call the police." § 87(2)(b) then threatens to file a complaint, and turns the camera on himself. The camera then swings towards a bulky white male with a thick beard, identified via investigation as Det. Hoosack, who is standing just outside § 87(2)(b)'s yard, says, "Sir, for five seconds..." Next to Det. Hoosack is an officer identified via investigation as Det. Carter, who is Hispanic and is wearing a baseball cap and an American Eagle jacket and an officer identified via investigation as PO Rosario, who is a Hispanic male wearing a black jacket, and who has a fade haircut. Det. Carter is standing outside the yard, while PO Rosario is standing just inside the yard.

Det. Munafo tells § 87(2)(b) that they need him to cooperate, exit his yard and go to his car. § 87(2)(b) refuses and asserts multiple times that he owns the car in question, which is a silver/grey minivan parked directly in front of the residence. § 87(2)(b) and § 87(2)(b) walk into the front yard from the side of the house. § 87(2)(b) asks what is happening and Det. Munafo says that the officers want to speak to her son. § 87(2)(b) asks why and § 87(2)(b) says that the officers saw him in his car and that the officers were "grabbing on me," and § 87(2)(b) seems to be verbally indicating that someone is presently grabbing him, though it is unclear in the video if this is taking place, or if § 87(2)(b) is referring to previously. § 87(2)(b) tells him to "calm down." Det. Munafo tells § 87(2)(b) to "relax."

Det. Munafo and § 87(2)(b) accuse each other of being confrontational. Det. Hoosack asks § 87(2)(b) why his family is coming into the yard. § 87(2)(b) explains that the police officers are "wicked." Then § 87(2)(b) accuses Det. Munafo of "grabbing on him," and Det. Munafo says he's not "grabbing on him" but that previously in their interaction, before the video camera was turned on, § 87(2)(b) was going "straight for [his] pocket" so Det. Munafo had to make sure § 87(2)(b) didn't have any weapons. (This interaction takes place at roughly 1:48 minutes.) § 87(2)(b) argues with Det. Munafo and Det. Munafo tells her to relax, to which § 87(2)(b) yells, "No!" § 87(2)(b) § 87(2)(b) -old niece, is standing next to § 87(2)(b) at this time.

§ 87(2)(b) asks an officer (who is not on camera) why they were grabbing him. The officer replies that he was running from them. § 87(2)(b) said he was not running. Sgt. Owen arrives and asks, "What's the problem?" § 87(2)(b) says, "Ain't no problem. Y'all on my property."

Det. Munafo and § 87(2)(b) get in an argument. § 87(2)(b) accuses Det. Munafo of having been disrespectful by grabbing him earlier. Det. Munafo explains that when he earlier asked § 87(2)(b) to stop, § 87(2)(b) immediately reached into his pocket, so Det. Munafo needed make sure § 87(2)(b) did not have a weapon.

§ 87(2)(b) then denies having run into his yard, and says he walked into his yard. A female voice agrees with this assessment, though it is unclear who is speaking.

Sgt. Owen again appears on screen, inside the § 87(2)(b)'s yard. Sgt. Owen identifies himself as Sgt. Owen. Sgt. Owen says into the camera, "Make sure you got me. We're going to be here until we're finished with whatever we're doing." A male voice asks § 87(2)(b) if he has

registration for his vehicle. § 87(2)(b) asks, "Where's the warrant at? Where's the affidavit?" § 87(2)(b) yells that the car is her son's.

At 3:40 minutes in the video, § 87(2)(b) says, "This dude going in the mailbox? Wow. Y'all off the hook." During the showing at the CCRB, § 87(2)(b) pointed to an officer appearing later in the video, who has been identified via investigation as Det. Libreros, and claimed that was the officer who looked in his mailbox.

§ 87(2)(b) accuses the officers of harassing her family, to which Det. Munafo replies that the officers "aren't harassing anybody." Sgt. Owen then says to § 87(2)(b) "Got anything you're not supposed to have? Got any weapons on you?" and it appears that Sgt. Owen then pats § 87(2)(b)'s person. Then the camera pans down to Sgt. Owen patting § 87(2)(b)'s ankles. § 87(2)(b) says, "Y'all going in my wallet now?" and Det. Munafo says, "Stop grabbing my hand," and § 87(2)(b) puts his arm straight out and Det. Munafo holds § 87(2)(b)'s arm.

§ 87(2)(b) then passes his camcorder to § 87(2)(b) who records the rest of the incident. Det. Munafo pats around § 87(2)(b)'s lower legs and ankles. § 87(2)(b) and Det. Carter argue about whether the car is § 87(2)(b)'s car. An officer identified as Det. Jared Tepperman (white male with a University of Michigan baseball cap) is standing nearby.

Sgt. Owen tells § 87(2)(b) to stop telling the officers what they are supposed to do. § 87(2)(b) claims that he has a law book in his car. Sgt. Owen asks § 87(2)(b) if it is his car. § 87(2)(b) says that he has told multiple officers that it is his car. Sgt. Owen asks for registration, and § 87(2)(b) asks why he needs registration, since he was never inside his car. Sgt. Owen then escorts § 87(2)(b) towards his car.

§ 87(2)(b) who remains on § 87(2)(b)'s property, continues to record from approximately ten feet away as § 87(2)(b) stands next to his car and talks to Det. Munafo, Det. Hoosack, Det. Carter, Sgt. Owen and an officer identified via investigation as PO Maurice Walston, who is a black male wearing a bullet-proof vest. § 87(2)(b) approaches the situation and says, "Don't fuck with me!" And a male off-camera says, "They want to get in the car! Let them get a warrant!"

§ 87(2)(b) takes something out of his wallet and shows it to Sgt. Owen. There is arguing in the background, off-camera. Then Sgt. Owen says, "That's the insurance," and says he wants to see the registration. § 87(2)(b) says that the registration is in the car and he won't open the car. § 87(2)(b) explains that the insurance card has his name and the license plate number on it.

A male off-camera (likely § 87(2)(b) who is holding the camera) talks to an officer who is also off-camera. The officer asks what gang § 87(2)(b) is in, and § 87(2)(b) asks what gang the officer is in, and asks if it is the NYPD. The officer confirms that he is a part of the NYPD.

After more discussion between § 87(2)(b) and the officers surrounding him, Sgt. Owen says, "Alright," and pats § 87(2)(b) on the shoulder and the officers disperse. § 87(2)(b) takes back the camcorder from § 87(2)(b) and continues recording. Sgt. Owen, PO Walston and Det. Carter get in a black Impala, while the other officers get into a black cargo van and a gray minivan. Det. Libreros is driving the black cargo van. He pulls up next to § 87(2)(b) who tells him he will be on YouTube, though it is unclear what Det. Libreros says in response. The officers then drive off as § 87(2)(b) curses at them.

Additional Civilian Contact Attempts

§ 87(2)(b) was called four times between January 11 and 18, 2011. His phone would not permit the investigation to leave him any messages, and a Lexis-Nexis search was unable to reveal any other phone numbers for § 87(2)(b) nor did it reveal his address.

On January 11 and 12, 2011, messages were left for § 87(2)(b)'s household's family answering machine for § 87(2)(b) and any others who may have witnessed the incident. A message was also left for § 87(2)(b) with her

mother, § 87(2)(b) during § 87(2)(b)'s telephone interview. § 87(2)(b) was then called three additional times between January 21 and 28, 2011. She did not respond to these attempts.

Other than the messages left at the § 87(2)(b) family answering machine, additional attempts to contact the minors who were present were not made.

NYPD Statements:

Subject Officer: DET. STEPHAN MUNAFO

Det. Munafo is a § 87(2)(b)-year-old white male with brown hair and brown eyes. He is 6'5" tall and weighs 260 pounds.

Det. Munafo worked from 12:27 pm to 9:00 pm on November 23, 2010. Det. Munafo was assigned to the chase car of a narcotics team. He was in plainclothes and was assigned to an unmarked gray minivan. His partners were Det. Hoosack and Det. Carter. He had no memo book entries related to the incident.

Interview Statement (encl. 16A-F)

On March 11, 2011, Det. Stephan Munafo was interviewed at the CCRB. He was not shown the video footage during his interview.

On November 23, 2010, at approximately 4:00 pm, Det. Munafo, who was driving a police van, was driving westbound on 112th Avenue, approaching 204th Street, in Queens. As Det. Munafo paused at the intersection, he looked to his left and he saw two males, identified via investigation as § 87(2)(b) and § 87(2)(b) on the curbside of a minivan that was parked on the west side of 204th Street, in the middle of the block. The males were on the far side of the van, as compared to where Det. Munafo's vehicle was on the street, but Det. Munafo was able to see around the back of the van, and observed that the two males had the sliding door of the minivan open and were leaning inside of it. Det. Munafo observed them for approximately 30 seconds and believed they were involved in a drug transaction because it appeared to Det. Munafo that the individuals were exchanging small objects, though from that distance, Det. Munafo could not see what the individuals were exchanging. The objects were "very small," of a size that could easily fit in a person's hand. § 87(2)(b) and § 87(2)(b) were touching each other's person (though Det. Munafo was unable to clarify where on their person) and leaning into the minivan.

Det. Munafo was still in the intersection, half an avenue away from § 87(2)(b). See the map attached as enclosure 6A, where the property in question is highlighted – Det. Munafo was at 112th and 204th Street when he made the above observations, while § 87(2)(b)'s van was parked directly in front of the highlighted house.

Det. Munafo turned left towards the minivan. As § 87(2)(b) saw the officers' vehicle approaching, he pulled § 87(2)(b) back from the car and closed the sliding door. The officers pulled over their van next to § 87(2)(b)'s van and got out and identified themselves. § 87(2)(b) told § 87(2)(b) to "get on the property, they can't talk to us, they can't do anything to us when we're on the property." § 87(2)(b) went into the poured-cement front yard of the building in front of which the van was parked, which was § 87(2)(b) Street in Queens.

§ 87(2)(b) stayed on the sidewalk to speak to the officers. The officers asked him for identification, if he lived in the area, and if he owned the car he had just been next to. § 87(2)(b) became irate and told the officers that they "couldn't" stop him and "couldn't" talk to him, and refused to provide his identification. § 87(2)(b) began drifting backwards onto the driveway while talking to the officers, and the officers followed. Det. Munafo again asked § 87(2)(b) for his identification. § 87(2)(b) refused, and was "blading" his body towards the officers (meaning he was turning one shoulder away from the officers, so that one half of his

body was concealed). § 87(2)(b) put his right hand into his right pocket. PO Munafo told § 87(2)(b) to take his hand out of his pocket and grabbed § 87(2)(b)'s right arm. § 87(2)(b) pulled his right arm out of his pocket himself and he had a video camera in his right hand. Det. Munafo let § 87(2)(b)'s arm go.

Within a few seconds of § 87(2)(b) pulling out the video camera, Det. Munafo frisked § 87(2)(b)'s person. Det. Munafo frisked § 87(2)(b) for weapons because it was a drug-prone location and most narcotics transactions are situations where officers have to worry about weapons. Moreover, § 87(2)(b) was "fidgety," which Det. Munafo clarified as his "blading" his body and § 87(2)(b) had reached for his pocket. Det. Munafo specified that he was afraid § 87(2)(b) was pulling out a weapon when he reached for his pocket, but when it was revealed to be a video camera, that particular fear was abated. Det. Munafo could not remember if § 87(2)(b) asked for his name.

Det. Munafo did not believe he frisked § 87(2)(b) at any point other than just after § 87(2)(b) pulled out the video camera. The rest of the field team arrived, including Sgt. Owen. Sgt. Owen spoke with § 87(2)(b) about whether he owned the vehicle. Det. Munafo could not remember if Sgt. Owen frisked § 87(2)(b). Det. Munafo did not reach into § 87(2)(b)'s back right pocket. Det. Munafo did not know if Sgt. Owen reached into § 87(2)(b)'s back right pocket. Det. Munafo could not recall if Det. Libreros was at the location. Det. Munafo did not see any officers look into § 87(2)(b)'s mailbox. Det. Munafo did not remember PO Rosario telling § 87(2)(b) "Keep being a smartass, it's going to get you locked up."

Subject Officer: DET. ANDRES LIBREROS

- *Det. Libreros is a § 87(2)(b)-year-old Hispanic male. He is bald and has brown eyes. He is 5'11" tall and weighs 205 pounds.*
- *Det. Libreros worked from 12:27 pm to 9:00 pm on November 23, 2010. Det. Libreros was assigned to the prisoner van of a narcotics team. He was in plainclothes and was assigned to a black Ford van. His partner was PO Rosario. He had no memo book entries related to the incident.*

Interview Statement (encl. 18A-D)

On March 16, 2011, Det. Andres Libreros was interviewed at the CCRB. The video footage was not shown to him. His statement differed from Det. Munafo's in that he arrived as a back-up officer after the stop had been made. When Det. Libreros was asked by the CCRB if he at any point feared for his safety while at the scene, he replied, "Not at all." Det. Libreros stated that when he was at the location, there was nothing that the civilians were doing that made him fear that any of them had a weapon.

When Det. Libreros arrived at the scene, no civilians were being frisked. Det. Libreros did not recall if there was a mailbox at the location. Det. Libreros did not recall if he looked inside a mailbox at the location. Det. Libreros did not hear PO Rosario say to any civilians, "Keep being a smartass, it's going to get you locked up."

Subject Officer: SGT. CHRISTOPHER OWEN

- *Sgt. Owen is a § 87(2)(b)-year-old white male with black hair and green eyes. He is 6'1" tall and weighs 165 pounds.*
- *Sgt. Owen worked from 12:25 pm to 9:00 pm on November 23, 2010. Sgt. Owen was supervising a Narcotics field team, and had PO Walston and Det. Tepperman in his vehicle. He was in plainclothes and was assigned to an unmarked dark blue Dodge Avenger. He had no memo book entries related to the incident.*

Interview Statement (encl. 19A-E)

On March 30, 2011, at 9:27 am, Sgt. Christopher Owen was interviewed at the CCRB.

Sgt. Owen stated that he would be unable to recall any of the incident unless he was allowed to refer to the video of the incident.

The video was then shown, starting at 3:16 minutes on the video. Sgt. Owen identified himself in the video. The video was allowed to continue rolling until one second after Sgt. Owen says, at 4:05 on the video, “Got anything you’re not supposed to have? Got any weapons on you?” The video was stopped and Sgt. Owen was asked what he was doing at that time, on the video.

Sgt. Owen stated that he asked § 87(2)(b) if he had any weapons. Inv. Starace explained that it appeared Sgt. Owen was leaning down slightly just after that and moving back and forth. Inv. Starace asked what Sgt. Owen was doing. Sgt. Owen stated that he did not recall what he did after he asked § 87(2)(b) if he had any weapons.

The video continued and panned away from Sgt. Owen and then back onto him at 4:11 minutes. Sgt. Owen is now shown squatting near § 87(2)(b) in the video and touching § 87(2)(b)'s ankle. Inv. Starace asked Sgt. Owen what he was doing. Sgt. Owen stated that he was frisking § 87(2)(b). Inv. Starace asked Sgt. Owen why he was frisking § 87(2)(b). Sgt. Owen explained that he had been interviewing § 87(2)(b) in “close proximity,” so for his safety, he was making sure § 87(2)(b) didn’t have a weapon.

Inv. Starace asked Sgt. Owen what caused him to believe that § 87(2)(b) might have a weapon. Sgt. Owen said, “For my safety, I’m going to frisk him and make sure he doesn’t have a weapon.”

Inv. Starace again asked Sgt. Owen what caused him to believe that § 87(2)(b) might have had a weapon. Sgt. Owen conferred with his SBA representatives, and one (in the audio it is unclear who) told him, “For your safety.” Sgt. Owen then repeated this: “For my safety,” as his answer.

Sgt. Owen was asked by Inv. Starace if there were any additional factors that caused him to believe that § 87(2)(b) had a weapon. Sgt. Owen repeated that the only factor causing him to frisk § 87(2)(b) was “for [his] safety.”

Sgt. Owen was asked again if there was anything that caused him to believe that § 87(2)(b) had a weapon. Sgt. Owen said there was not.

The video was then resumed and allowed to play for approximately thirty more seconds, before it was stopped.

After the video was stopped, Sgt. Owen was asked if seeing the portion of the video he was shown refreshed his memory of the rest of the incident. He stated that it did, and that he had frisked § 87(2)(b). However, Sgt. Owen could not recall if Det. Munafo frisked § 87(2)(b). Sgt. Owen did not recall if § 87(2)(b) asked Det. Munafo for his name or shield. Sgt. Owen did not recall if Det. Munafo reached into § 87(2)(b)'s back pocket.

The video was replayed and Sgt. Owen confirmed that he heard § 87(2)(b) say, “This dude’s going in the mailbox. Wow.” Sgt. Owen then stated to the CCRB that whatever § 87(2)(b) was referring to on the video was happening behind him, meaning that he did not see anyone looking inside § 87(2)(b)'s mailbox.

Witness Officer: DET. THOMAS CARTER

- Det. Carter is a § 87(2)(b)-year-old Hispanic male with black hair and brown eyes. He is 5'11" tall and weighs 230 pounds.
- Det. Carter worked from 12:27 pm to 9:00 pm on November 23, 2010. Det. Carter was assigned to the chase car of a narcotics team. He was in plainclothes and was assigned to an unmarked blue Toyota minivan. His partners were Det. Munafo and Det. Hoosack

Memo Book Entry (encl. 15A-C)

At 4:20 pm, Det. Carter stopped one black male for possible drug sales and grand larceny auto, in front of § 87(2)(b). At 4:30 pm, a Stop, Question and Frisk Report was prepared regarding the incident and the unit resumed patrol.

Stop, Question and Frisk Report (encl. 15D)

Report number § 87(2)(b), which was prepared by Det. Carter, states that an unknown individual (identified via investigation as § 87(2)(b)) was stopped for suspicion of grand larceny auto at 4:20 pm on November 23, 2010, in front of § 87(2)(b) in Queens. § 87(2)(b) was observed for one minute prior to the stop. He was stopped for ten minutes. The circumstances leading to the stop were "Looking into vehicle and moving away as approached." Additional factors were "Evasive, false or inconsistent responses to officers' questions" and "Changing directions at the sight of officer." Physical force was used against § 87(2)(b) insofar as "Hands on Suspect" is noted. § 87(2)(b) was frisked because of "Refusal to comply with officers' directions" and "Furtive movements." § 87(2)(b) was not searched. Note: the request for the handwritten Stop, Question and Frisk Report returned negative (see encl. 30M).

Interview Statement (encl. 15E-G)

On March 2, 2011, Det. Thomas Carter was interviewed at the CCRB. He was not shown the video footage. § 87(2)(g)

§ 87(2)(b) He stated that as the officers were driving down the block, they observed § 87(2)(b) and § 87(2)(b) "looking" into a minivan, which was turned off, though it had a door open. When he saw the officers stop near his vehicle, § 87(2)(b) shut the door quickly and § 87(2)(b) and § 87(2)(b) walked into the front yard of § 87(2)(b).

When asked by the CCRB to specify what he thought § 87(2)(b) was doing, Det. Carter said, "I didn't know what he was doing. We looked at him, he looked at us, he looked back and slammed the door. He could have thrown something in the car ... we wanted to know what was going on." When Det. Carter was asked if he knew what § 87(2)(b) threw into the car, or if he could describe its dimensions, Det. Carter could not. Other than shutting the door quickly upon the sight of the officers, § 87(2)(b) was not doing anything else unusual.

Det. Carter claimed that Det. Munafo never made any physical contact with § 87(2)(b). Det. Carter was not aware of § 87(2)(b) ever being frisked. At one point, when § 87(2)(b) reached into his pocket and pulled out an object, Det. Carter feared for his safety because he believed it might have been a gun; but it was in fact just a camcorder. There were no other actions on § 87(2)(b)'s part that caused Det. Carter to fear for his safety – after § 87(2)(b) had removed the camcorder, Det. Carter had no suspicion that § 87(2)(b) had any weapons on his person.

Det. Carter did not remember if § 87(2)(b) asked Det. Munafo for his name. Det. Carter did not hear PO Rosario say to § 87(2)(b) "Keep being a smartass, it's going to get you locked up."

Det. Carter acknowledged completing the Stop, Question and Frisk Report for the incident. Det. Carter was asked if § 87(2)(b) was suspected of Grand Larceny Auto, as noted on the

report. Det. Carter confirmed that this was correct. When Det. Carter was asked to specify what was meant by “evasive, false or inconsistent response to officers’ questions,” Det. Carter explained that § 87(2)(b) was not answering the officers’ questions about what he was doing by the minivan. Det. Carter was asked what was meant by “Refusal to Comply with Officers’ Directions” with regard to the “Frisk Basis.” Det. Carter explained that § 87(2)(b) refused to provide his identification. When asked what was meant by “Furtive Movements” as a basis for a frisk, Det. Carter explained that § 87(2)(b) had reached into his pocket. When Det. Carter was asked if, based on viewing the Stop, Question and Frisk Report he had filled out, he now wanted to amend his statement, Det. Carter stated that he did not frisk § 87(2)(b) and did not remember if Det. Munafo or Sgt. Owen did so.

Subject Officer: PO VICTOR ROSARIO

- *PO Rosario is a § 87(2)(b)-year-old Hispanic male, who is 5’10” tall and weighs 190 pounds. He has black hair and brown eyes.*
- *PO Rosario worked from 1:00 pm to 9:00 pm on November 23, 2010. PO Rosario was assigned to a black cargo van § 87(2)(b) which served as the Prisoner Van of a narcotics set. He was in plainclothes. His partner was Det. Libreros. He had no memo book entries related to the incident.*

Interview Statement (encl. 20A-D)

PO Rosario was interviewed at the CCRB on April 15, 2011. He was not shown the video footage. PO Rosario claimed to be the last car to arrive at the scene. He did not see any officer frisking or searching § 87(2)(b) though he noted that § 87(2)(b) had done nothing in his presence that indicated he may have had a weapon. PO Rosario did not know if § 87(2)(b) asked Det. Munafo for his name and was unaware of a mailbox at the scene. PO Rosario denied the allegation that he told § 87(2)(b) “Keep being a smartass, it’s going to get you locked up.”

Witness Officer: DET. VINCENT HOOSACK

- *Det. Hoosack is a § 87(2)(b)-year-old white male, who is 6’2” tall and weighs 320 pounds. He has brown hair and brown eyes.*
- *Det. Hoosack worked from 12:27 pm to 9:00 pm on November 23, 2010. Det. Hoosack was assigned to the chase car of a narcotics team. He was in plainclothes and was assigned to an unmarked gray/blue Toyota minivan. His partners were Det. Munafo and Det. Carter.*

Memo Book Entry (encl. 14A-B)

At 4:20 pm, one black male was stopped for possible Grand Larceny Auto in front of § 87(2)(b). At 4:30 pm, a Stop, Question and Frisk Report was prepared and the officers resumed patrol.

Interview Statement (encl. 14C-E)

On March 2, 2011, Det. Vincent Hoosack was interviewed at the CCRB. He was not shown the video footage. § 87(2)(g)

With regard to the initial observation, Det. Hoosack stated that § 87(2)(b) and § 87(2)(b) were standing on the passenger side of the van, talking, with the sliding door of the van open. The vehicle was not turned on. When Det. Hoosack was asked what was strange about the door being open, Det. Hoosack said, “We just didn’t know what they were doing.” Det. Hoosack explained that the car had out of state license plates, and that the officers thought maybe

the civilians were “doing something” with the car. He speculated that maybe the civilians were smoking marijuana and had just thrown it in the car, though Det. Hoosack was clear that the officers “didn’t know” what the civilians were doing. When asked directly, Det. Hoosack stated that the officers suspected that the civilians were engaged in car stripping, or else perhaps smoking marijuana, though they “couldn’t really tell, from where they were standing.” Det. Hoosack explained that the civilians were on the passenger side of the van, which was closest to the curb, and the officers were parked approximately a car length in front of the civilians’ car, so they had to crane their necks backwards to look at what the civilians may have been doing. The officers observed § 87(2)(b) and § 87(2)(b) for approximately ten seconds before they stopped their car.

When the officers stopped their own vehicle in the street, the officers and § 87(2)(b) made eye contact. The officers got out of the car and either § 87(2)(b) or § 87(2)(b) threw an unspecified object in the car and slammed the door shut and they both started to walk away from the vehicle. Det. Hoosack explained that his “led us to believe” that the civilians were “doing something wrong.”

Det. Hoosack stated, “Because the way they were standing there, once we approached them, they slammed the door like they were trying to hide something from us. We wanted to know who the car came back to, whose it was, what the deal was with the car. Why did they become so shaky when we got out of the car? They walked away and slammed the door. We didn’t know what was going on with the car.”

With regard to Det. Munafo and § 87(2)(b)’s interactions, Det. Hoosack claimed that Det. Munafo never physically stopped § 87(2)(b) – Det. Munafo was just talking to him when § 87(2)(b) pulled out a video camera from one of his pockets. At this point, Det. Munafo “made sure that § 87(2)(b) wasn’t putting his hands in his pockets again.” When Det. Hoosack was asked to clarify what was meant by this, Det. Hoosack stated that “he was just standing there talking to the guy.” When Det. Hoosack was asked if Det. Munafo frisked § 87(2)(b) Det. Hoosack said Det. Munafo had not, and reiterated that Det. Munafo was just talking to § 87(2)(b).

Other than when he reached into his pocket to remove the camcorder, § 87(2)(b) did nothing else that raised Det. Hoosack’s suspicion that he had a weapon, or that caused Det. Hoosack to fear for his safety.

Det. Hoosack did not hear § 87(2)(b) ask for Det. Munafo’s name. § 87(2)(b) did not accuse anyone of looking inside his mailbox. Det. Munafo did not see Det. Libreros open or look inside § 87(2)(b)’s mailbox. Sgt. Owen did not frisk § 87(2)(b). Det. Hoosack did not see any officer reach into § 87(2)(b)’s pockets. Det. Hoosack did not hear PO Rosario tell § 87(2)(b) “Keep being a smart ass, it’s going to get you locked up.”

Other Officers Interviewed

PO Jared Tepperman of Queens Narcotics was interviewed at the CCRB on March 16, 2011 (encl. 17A-D). He was assigned to the same field team as the subject officers and was partnered with Sgt. Owen and PO Walston. He claimed that he arrived as back up and “stayed with the group” of officers. He either did not recall or denied witnessing each of the allegations.

PO Maurice Walston of Queens Narcotics was interviewed at the CCRB on May 13, 2011 (encl. 21A-D). He was assigned to the same field team as the subject officers and was partnered with Sgt. Owen and PO Tepperman. When PO Walston was at the scene, he did not see anything that caused him to believe that any of the civilians had a weapon. He did not recall witnessing any of the allegations.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 18, 2011 with regard to the incident (encl. 27A).

- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian's Criminal History (encl. 28A-B)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian's CCRB History (encl. 5A)

- § 87(2)(b) filed the following CCRB complaint: § 87(2)(b)
[REDACTED]

Subject Officers' CCRB History

- Det. Munafo has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 4A).
- Det. Libreros has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 4B).
- Sgt. Owen has been a member of the service for eleven years and there are no substantiated CCRB allegations against him (encl. 4C).
- PO Rosario has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 4D).

Conclusion

Identification of Subject Officers

Det. Munafo acknowledges following § 87(2)(b) as he walked back onto his property. § 87(2)(b) described the officer who followed him onto his property and stopped him as a 6'4"-5" tall, heavy-built white male wearing a blue Old Navy zipper-down shirt. This officer also refused to provide his name and spoke with § 87(2)(b) at length prior to Sgt. Owen's arrival. The pedigree matches Det. Munafo, and the video evidence confirms that Det. Munafo (who can be matched to his officer photograph (encl. 22A)) was the officer who primarily interacted with § 87(2)(b) prior to Sgt. Owen's arrival. § 87(2)(g)

§ 87(2)(b) also alleged that an officer, either Det. Carter or Det. Munafo, reached into his rear right pocket, though § 87(2)(b) was unsure which officer. The video evidence indicates that Det. Munafo places his hand near § 87(2)(b)'s pockets on the right side of his person, and that § 87(2)(b) accuses Det. Munafo of reaching into that pocket. § 87(2)(g)

When showing the video of the incident to the CCRB, § 87(2)(b) pointed to an officer wearing a grey stocking cap with a red insignia and stated that this was the officer who looked inside his mailbox. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) identified Sgt. Owen by name as an officer who frisked him. § 87(2)(g)

§ 87(2)(b) claimed that the officer who was the passenger in the black cargo van that arrived at the scene spoke rudely to him. PO Rosario was the passenger in this van. § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) was at the scene with § 87(2)(b) when the officers approached him. By both the civilians' and officers' accounts, § 87(2)(b) voluntarily spoke with Det. Hoosack, but § 87(2)(b) was at no point physically stopped and was freely allowed to end the conversation and walk away when § 87(2)(b) instructed him to do so. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Det. Stephan Munafo entered the front yard of § 87(2)(b) in Queens.

§ 87(2)(b) claimed that the officers, led by Det. Munafo, illegally entered his front yard, which was private property. However, according to New York v. Kozlowski, 69 N.Y.2d 761 (1987) (encl. 1A), an area made available for public access when approaching a house does not constitute an area where an individual has a reasonable expectation of privacy. See also, People v. Williams, 159 A.D.2d 743 (2d Dep't 1990) (holding no expectation of privacy in a backyard) (encl. 2J-K).

In this instance, though there was a small fence in front of § 87(2)(b)'s yard, there was also a driveway as well as a gap in the fence without a gate or any other obstacle to prevent the public from approaching the front door. § 87(2)(g)

Allegation B – Abuse of Authority: Det. Stephan Munafo stopped § 87(2)(b)

§ 87(2)(b) stated that, prior to Det. Munafo arriving, he had been talking to § 87(2)(b) and putting § 87(2)(b)'s bags into his van. When § 87(2)(b) saw the officers, he closed the door to the van and he and § 87(2)(b) stepped backwards, away from the van and toward his property. Det. Munafo, Det. Hoosack and Det. Carter are in agreement with § 87(2)(b)'s version of events, though they were unable to see what § 87(2)(b) was putting into the van. § 87(2)(g)

§ 87(2)(b) and Det. Munafo are also in agreement that Det. Munafo grabbed § 87(2)(b) s arm as § 87(2)(b) was moving away from the officers and holding a camcorder. § 87(2)(g)

According to NYS Criminal Procedure Law 140.50(1) (encl. 2A), an officer may only stop a civilian if the officer reasonably suspects that the civilian is committing, has committed, or is about to commit a felony or misdemeanor.

§ 87(2)(g)

The Stop, Question and Frisk Report reflects that § 87(2)(b) was stopped for Grand Larceny Auto and the circumstances leading to the stop were “Looking into vehicle and moving away as approached.” Additional factors were “Evasive, false or inconsistent responses to officers’ questions” and “Changing directions at the sight of officer.”

Det. Munafo claimed that he observed a possible drug transaction because it appeared to Det. Munafo that § 87(2)(b) and § 87(2)(b) were exchanging small objects, though Det. Munafo could not see what the individuals were exchanging.

Det. Carter, when asked by the CCRB to specify what he thought § 87(2)(b) was doing, said, “I didn’t know what he was doing. We looked at him, he looked at us, he looked back and slammed the door. He could have thrown something in the car ... we wanted to know what was going on.” When Det. Carter was asked if he knew what § 87(2)(b) threw into the car, or if he could describe its dimensions, Det. Carter could not. Other than shutting the door quickly at the sight of the officers, § 87(2)(b) was not doing anything else unusual.

Det. Hoosack explained that the car had out of state license plates, and that the officers thought maybe the civilians were “doing something” with the car. He speculated that maybe the civilians were smoking marijuana, and had just thrown it in the car, though Det. Hoosack was clear that the officers “didn’t know” what the civilians were doing. When asked more directly, Det. Hoosack stated that the officers suspected that the civilians were engaged in car stripping, or else perhaps smoking marijuana, though the officers “couldn’t really tell, from where they [the civilians] were standing.”

None of the three officers were able to describe in any detail why they believed § 87(2)(b) was involved in an offense, which they variously described as drug dealing or car stripping or marijuana smoking or grand larceny auto. In fact, Det. Hoosack and Det. Carter acknowledged that they did not know what § 87(2)(b) was doing. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Det. Stephan Munafo refused to provide his name to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) claimed that he asked Det. Munafo for his name just after Det. Munafo grabbed his arm a second time, and just as § 87(2)(b) had begun recording the incident, but that Det. Munafo failed to provide it.

Det. Munafo could not remember if § 87(2)(b) asked for his name.

The video evidence is inconclusive – between the beginning of the video and 0:16 minutes, § 87(2)(b) says, in reference to Det. Munafo, “He didn’t say who he is,” and Det. Munafo replies that he told § 87(2)(b) that he was “the police.”

§ 87(2)(g)

Allegation D – Abuse of Authority: Det. Andres Libreros searched the mailbox at § 87(2)(b)
in Queens.

§ 87(2)(b) claimed that Det. Libreros opened his mailbox and pushed items to the side.

Det. Libreros denied this allegation. The other officers interviewed either stated that they were not in a position to observe Det. Libreros opening § 87(2)(b)’s mailbox, or denied that he did so.

§ 87(2)(g) At 3:40 minutes, § 87(2)(b) says, “This dude going in the mailbox? Wow. Y’all off the hook,” but neither Det. Libreros nor the mailbox are visible because § 87(2)(b) keeps the camera focused on mostly on Sgt. Owen and Det. Carter is blocking a portion of the view when the camera pans over.

§ 87(2)(g)

Allegation E – Abuse of Authority: Sgt. Christopher Owen frisked § 87(2)(b)

§ 87(2)(b) claimed that as he was speaking to Sgt. Owen, just after he asked about the mailbox, Sgt. Owen began frisking him. Sgt. Owen, when shown the video footage of the incident, acknowledged that it captured him frisking § 87(2)(b) § 87(2)(g)

According to NYS Criminal Procedure Law 140.50(3) (encl. 2A), an individual can only be frisked when an officer reasonably suspects that the individual possesses a weapon.

When Sgt. Owen was interviewed at the CCRB, he twice stated that he frisked § 87(2)(b) “for [his] safety,” and that this was the only reason § 87(2)(b) was frisked. When Sgt. Owen was asked by the CCRB if there was anything that caused him to believe that § 87(2)(b) had a weapon, Sgt. Owen said there was not.

§ 87(2)(g)

Allegation F – Abuse of Authority: Sgt. Christopher Owen failed to supervise the frisks of

§ 87(2)(b)

§ 87(2)(b) alleged that Det. Munafo and Det. Carter frisked him moments after Sgt. Owen began doing so. The video footage clearly captures Det. Munafo frisking § 87(2)(b) and Det. Munafo acknowledged doing so. Det. Carter’s actions are ambiguous in the footage and he denied frisking § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Sgt. Owen was the supervisor of the narcotics team and therefore was responsible for any subordinates who were frisking § 87(2)(b) § 87(2)(g)

According to NYS Criminal Procedure Law 140.50(3) (encl. 2A), an individual can be frisked for a weapon only when an officer reasonably suspects that he is in danger of physical injury.

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Abuse of Authority: Det. Stephan Munafo searched § 87(2)(b)

§ 87(2)(b) claimed that either Det. Munafo or Det. Carter reached into § 87(2)(b)'s back right pocket where his wallet was located.

Video evidence at 4:10 minutes shows Det. Munafo's right hand on § 87(2)(b)'s right waist near his pockets, at which point § 87(2)(b) says, "Y'all going in my wallet??" and Det. Munafo says, "Stop grabbing my hand!" and then § 87(2)(b) says, "No!" and Det. Munafo grabbed § 87(2)(b)'s arm and straightened it out, perpendicular to § 87(2)(b)'s torso.

In his CCRB interview, Det. Munafo denied reaching into § 87(2)(b)'s pocket.

§ 87(2)(g)

Allegation H – Discourtesy: Det. Victor Rosario spoke rudely to § 87(2)(b)

§ 87(2)(b) claimed that while the van was pulling away, Det. Rosario told him, "Keep being a smartass, [it] is going to get you locked up."

Det. Rosario denied saying this. All other officers interviewed either denied or did not recall this remark being made.

The video evidence demonstrates that at 9:25 minutes, § 87(2)(b) spoke to Det. Libreros, who was the driver of the vehicle in which Det. Rosario was the passenger, but it is unclear if Det. Libreros and/or Det. Rosario spoke back. No audio from the officers is captured.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date